Govt. exist for the interest of the alien rulers against the interest of our people, and as such, they have no moral binding whatsoever.' So the tribunal had no jurisdiction over the accused and in turn the accused had no duty to appear before the tribunal. They had no hesitation in declaring that 'for this reason, we decline to be a party to this farcical show and henceforth we shall not take part in the proceedings of this case'.[4] This boycott of legal proceedings in the Lahore Conspiracy Case, on the very first day of the tribunal proceedings, was a shrewd move. Those who instigated it would be proven right that this was a political trial. These trials always ended badly for those charged. The dice was always loaded against them. They started off with all the semblance and appearance of purporting to be fair, but the emerging reality would declare a different truth. So it was also in the Lahore Conspiracy Case.

This is nowhere more clear than in the modern epitome of a military court which is located today in Guantánamo. Its long chronicle began in November 2001. This is when President Bush announced plans to employ military commissions to prosecute people captured in what was described as a 'War on Terror'. The Bush administration followed this with a declaration that such prisoners would be both held at the US Naval Base at Guantánamo, in Cuba, and tried in a court there. This was not US territory, but it was held by the US on a lease. In January 2002, the first prisoners arrived at this base. Within a year, the prison at Guantánamo was holding 780 prisoners. The position of the US Government was that once the prisoners had disembarked in Cuba there was no jurisdiction in any court to determine the lawfulness or otherwise of their detention, and nor could any court consider whether or not the prisoners were being treated humanely. The first lawsuit was filed in February 2002 under the name of *Rasul et al. v. Bush*. This was on behalf of the imprisoned detainees in the United States District Court for the District of Columbia. It included three prisoners, two of whom were from Britain and a third from Australia, although a fourth one, another Australian, was also added two months later to the claim.

Initially, the litigation against the Bush administration was conceived of as a challenge to the military commission system, but once it became clear